

STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE:	)	
LINDSEY JOHNSTON	)	Docket Nos. 2014-181
License No. 097.0095623	)	2014-290

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through State Prosecuting Attorney S. Lauren Hibbert, and the Respondent, Lindsey Johnston, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by non-licensed and non-certified psychotherapists pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

Stipulated Facts

2. Lindsey Johnston (the "Respondent") of Rutland, Vermont is rostered by the State of Vermont as a Non-Licensed & Non-Certified Psychotherapist under number 097.0095623. Respondent was originally placed on the roster May 23, 2013 and her roster expires on or about November 30, 2016.
3. At all times relevant, Respondent worked at Rutland Mental Health Services.
4. In February of 2014, the facility conducted an audit with regard to Respondent's access of electronic medical records without a clinical reason for access. This audit showed the following:
 - a. Respondent accessed Patient A's electronic medical records eleven times in 2012 and 2013. Patient A was a co-worker and a college classmate of the Respondent.
 - b. Respondent accessed Patient B's electronic medical records twice in 2013. Patient B has not received treatment at Rutland Mental Health Services since 1991.

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- c. Respondent did not have a clinical relationship with either Patient A or Patient B; therefore, there is not a legitimate business reason of accessing the records.
- 5. Essential standards of the profession require a clinical relationship, and resulting legitimate business reason, before accessing the confidential electronic medical records of a patient.

Violations

- 6. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of:
 - a. 3 V.S.A. § 129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession); and
 - b. 3 V.S.A. § 129a(b)(1) and (2) (Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) performance of unsafe or unacceptable patient or client care; or (2) failure to conform to the essential standards of acceptable and prevailing practice).

Understandings

- 7. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
- 8. Contingent upon the Board's acceptance of the terms of the Consent Order, Respondent admits that the facts above are true and that the conditions below are necessary to protect the public.
- 9. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
- 10. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
- 11. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation and Consent Order.

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12. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
13. Contingent upon the Board's acceptance of the terms of the Consent Order, Respondent voluntarily waives her right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
14. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **REPRIMANDS** the Respondent's license.
- B. Respondent's license is **CONDITIONED** as follows:
 - a. Respondent shall, within ninety days of this Order, at her own expense, complete a 3 credit course pre-approved by the Board as reasonably related to HIPPA/Patient Privacy/Ethics. Failure to complete such a course within the prescribed timeframe shall constitute a violation of this Order.
 - b. Respondent shall, within ninety days of this Order, pay an administrative fine in the amount of two hundred and fifty dollars.
 - c. Upon receipt of satisfactory evidence that Respondent has completed the described course and paid the required fine, the Board or its designee shall terminate the conditions upon Respondent's license and restore the license to unencumbered status.
- C. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.
- D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

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Dated: 7/9/15

By: S2ell
S. Lauren Hibbert
State Prosecuting Attorney

Dated: 7/9/15

By: Lindsey Johnston
Lindsey Johnston

APPROVED AS TO FORM:

ATTORNEY FOR RESPONDENT

Dated: 7/9/15

By: Ellen Mercer Fallon, Esq.
Ellen Mercer Fallon, Esq.

APPROVED AND SO ORDERED:

VERMONT BOARD OF
ALLIED MENTAL HEALTH
PRACTITIONERS

Dated: 7/16/15

By: Jammy Plush
Chairperson

Date of Entry: 7/16/15

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